IN THE HIGH COURT OF ORISSA AT CUTTACK

WPC (OAC) No.2783 of 2017

Ashis Kumar Mishra .... ***Petitioner***

-versus-

State of Odisha and Ors. .... ***Opposite Parties***

Advocates appeared in the case through Hybrid Mode**:**

For Petitioners : *Mr. Subash Chandra Puspalaka, Adv.*

For Opposite Parties. : *Mr. D.K. Mohanty, ASC*

CORAM:
Dr. JUSTICE S.K. PANIGRAHI

DATE OF HEARING:-21.06.2023
DATE OF JUDGMENT: -03.07.2023

Dr. S.K. Panigrahi, J.

1. The Petitioner, in this Writ Petition, seeks a direction from this Court to the Opposite Parties/ State not to publish the result of the Departmental Proceeding No.7 of 2016 till completion of the Trial in C.T. Case No.59 of 2016 pending before the learned Sessions Judge, Jagatsinghpur against him, as both the proceedings arise out of same fact and cause of action.

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I. FACTS OF THE CASE:

2. The brief facts of the case, in a nutshell, is that the Petitioner is serving as Constable in the office of the Reserve Police, Jagatsinghpur under the control of Superintendent of Police, Jagatsinghpur. He has been implicated in Jagatsinghpur P.S Case No.296 of 2015 corresponding to G.R Case No.997 of 2015 for the offences punishable under Sections 307, 294, 120-B, 201, 109, 34 of the I.P.C. and Sections 25 and 27 of the Arms Act based on which the Departmental Proceeding No.7 of 2016 was initiated against him in which the witnesses have been examined. Thereafter, the date has been fixed to 15.10.2017 to submit the written statement of defence on behalf of the Petitioner.

3. One Pramod Rout of Jagatsinghpur lodged a written report on 10.09.2015 before the Jagatsinghpur Police Station alleging therein that on the same day at about 5.30 pm, three unknown persons came on a motor cycle and fired at him. Fortunately, the bullets missed the target and he did not get hit. On the basis of such allegation, Jagatsinghpur Police Case No.296 of 2015 was registered against the unknown accused persons. During the course of investigation, the name of one Tulia Mishra came up wherein some of the co-accused persons have stated that Tulia Mishra has made a conspiracy against Pramod Rout. During investigation it was learned that the Petitioner had called Tulia

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Mishra from his mobile phone due to which the Petitioner was implicated in this case and he was arrested on 22.09.2015 but released on bail. Thereafter, the police filed charge sheet in the criminal case and the case was committed to the court of the learned Sessions Judge, Jagatsinghpur and numbered as C.T. Case No.59 of 2016 and is ready for trial.

4. Based on the accusation in the criminal case, the Superintendent of Police, Jagatsinghpur initiated Departmental Proceeding No.7 of 2016 against the Petitioner and framed charges of gross misconduct and involvement in the criminal case. In the said charge, it is stated that on 14.07.2015 at about 8 pm, the Petitioner along with N.K. Kanungoo, P.K. Malik, S.P. Sahoo were commanded to report before the Additional Superintendent of Police to perform emergency duty. On 22.09.2015 at about 1.15 pm, the I.I.C. Paradeep Police Station found that the Petitioner was absent from his duty without any leave or permission from the authority and on the same day, he was involved in Jagatsinghpur P.S Case No.296 of 2015 in which Pramod Rout was the informant. Therefore, he was asked to show-cause as to why action shall not be taken against him.

5. After receiving the charge-sheet, the Petitioner filed the show-cause denying the charges leveled against him. He further stated that one Tulia Mishra has been implicated in this case who happens to be his relation. It was learned from the call details

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that the petitioner had talked with Tulia Mishra and therefore the police have implicated him in the criminal case.

6. The Petitioner submitted the show-cause with a request to exonerate him from the Departmental Proceeding. However, the same was not considered and inquiry in the Department Proceeding was contemplated. The Petitioner had been asked to submit the show-cause/written defence along with material evidence in his support for submitting findings in the case by 15.10.2017 vide letter dated 15.09.2017 of the Additional S.P.-cum-Inquiring Officer.

7. As the Departmental Proceedings has been initiated based on the criminal case, the Petitioner apprehends that in case he will be punished in the Departmental Proceedings then it may cause prejudiced to him as there is every likelihood that the punishment in the Departmental Proceedings may affect the criminal trial. Hence, this Writ Petition.

II. SUBMISSIONS ADVANCED ON BEHALF OF THE PETITIONER:

8. Learned counsel for the Petitioner submitted that the Petitioner has been falsely implicated in Jagatsinghpur P.S Case No.296 of 2015 corresponding to G.R case No.997 of 2015 based on which the Departmental Proceeding No.7 of 2016 was initiated against him. During the course of investigation, the name of one Tulia Mishra came out and some of the co-accused persons had stated

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that Tulia Mishra had made a conspiracy against Pramod Rout. He contended that since the Petitioner had called Tulia Mishra from his mobile phone for which the Petitioner was implicated in this case and he was arrested on 22.09.2015 and released on bail.

9. It was further submitted that the Departmental Proceeding is complete and the Petitioner was directed to submit the written statement. Thereafter, the Inquiring Officer would give his findings on the basis of which the Disciplinary Authority shall impose punishment as the proceeding has been initiated based on the criminal case. The Petitioner apprehends that in case he will be punished in the Departmental Proceedings, it may cause prejudicial effect on him as there is every likelihood that the punishment in the Departmental Proceeding may affect the criminal trial.

III. **SUBMISSIONS ON BEHALF OF THE O.Ps/ STATE:**

10. Per contra, learned counsel for the Opposite Parties/ State submitted that the Petitioner has filed the present Writ Petition praying for a direction to the Opposite Parties not to publish the result of the Departmental Proceeding No.7 of 2016 till completion of the criminal trial in C.T. Case No.59 of 2016 pending before the learned Sessions Judge, Jagatsinghpur as

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both the proceedings arise out of the same fact and cause of action.

11. He further submitted that the relief sought for by the Petitioner is not appropriate/desirable as per the provision of Orissa Government General Circular bearing No.29 S.A.T. dated 28.08.1962 issued by P and S Department, Government of Orissa. In the instant case, the action of the Opposite Parties/ State in publishing the result of the Departmental Proceeding is not likely to cause any embarrassment to the Petitioner and prejudicially affect the criminal proceeding. He further submitted that the criminal proceeding and the departmental proceeding though stand on same footing, they do not involve complicated question of law and facts. It was also submitted that the departmental proceeding and the criminal case can proceed simultaneously since separate standard of proof is required in both the cases. In the criminal case, the standard of proof is "Beyond Reasonable Doubts" while in the departmental proceeding the facts can be proved by "preponderance of probabilities". Therefore, the prayer sought by the Petitioner is not maintainable.

12. He further submitted that the apprehension of the Petitioner that result of the Departmental Proceeding would prejudicially affect the criminal case is misplaced and premature one. Both the cases would be decided on its own merit and on different

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standard in so far the burden of proof is concerned. The claim of the Petitioner is based on presumption and no cause of action arises for the relief sought for by the Petitioner. In view of the above, he submitted that this Writ Petition may be dismissed being devoid of merit.

IV. COURT'S ANALYSIS AND ORDER:

13. The purpose of Departmental proceedings and criminal trial are different. The criminal prosecution is conducted because of an offence committed due to act of commission in violation of law or omission of public duty. On the other hand, the departmental enquiry is initiated in order to maintain discipline and efficiency in public service. It is expedient to conduct and complete the departmental proceeding as expeditiously as possible. Departmental proceeding was initiated as against the Petitioner so also a criminal trial based on the same facts as stated by the prosecution. The Petitioner has filed the present Writ Petition before this Court praying to stay the department proceeding.

14. In the case of ***Depot Manager A.P. State, Road Transport Corporation v. Mohd. Yousuf Miya & Ors***.[1], the Apex Court observed that there would be no prejudice in holding the departmental proceedings at par with the criminal trial. It would be inappropriate to give inflexible guidelines as to

[1] (1997) 2 SCC 699

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whether the departmental proceedings and the criminal trial could take place simultaneously or it shall be rather stayed. This has to be determined in the backdrop of the facts and circumstances of each case at hand.

15. The pendency of a criminal trial is not a bar in conducting a departmental inquiry. It is neither a contempt of Court nor the violation of natural justice. It is not a mandate under the principle of natural justice for the employer to wait until the trial court has taken a decision on the criminal proceeding before conducting a departmental enquiry. The power of taking disciplinary action is vested with the disciplinary authority and the court shall not interfere with it as it is entirely an executive process. So, the court, whether in cases of criminal or civil does not hold power to intervene in such processes. Hence, initiating a departmental proceeding and continuing it at par with the criminal trial in good faith do not amount to the obstruction and hindrance in the course of justice in the pending trial. The same has been reiterated by the Supreme Court in ***Delhi Cloth & General Mills Ltd. Vs. Kushal Bhan***[2] and in ***Jang Bahadur Singh Vs. Baij NathTiwari***[3]. Further, in ***Delhi Cloth & General Mills Ltd.*** (supra) it was held even if the disciplinary committee

[2] AIR 1960 SC 806
[3] AIR 1969 SC 30

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declares the accused as not guilty, the result of the criminal trial remains unaffected and it does not evade his chances of conviction. Hence, the enquiry officer can continue his investigation despite the ongoing criminal trial against the accused person and the final result, whether guilty or not, can be published, which is independent from the criminal trial not prejudicing the accused, even if the disciplinary committee rules in his favour.

16. In ***Hindustan Petroleum Corporation Ltd. and Ors. –vrs.- Sarvesh Berry***[4], the Apex Court held that:

> *"The purpose of departmental enquiry and of prosecution is two different and distinct aspects. The criminal prosecution is launched for an offence for violation of a duty the offender owes to the society, or for breach of which law has provided that the offender shall make satisfaction to the public. So crime is an act of commission in violation of law or of omission of public duty. The departmental enquiry is to maintain discipline in the service and efficiency of public service. It would, therefore, be expedient that the disciplinary proceedings are conducted and completed as expeditiously as possible. It is not, therefore, desirable to lay down any guidelines as inflexible rules in which the departmental proceedings may or may not be stayed pending trial in criminal case against the delinquent officer. Each case requires to be considered in the backdrop of its own facts and circumstances. There would be no bar to proceed simultaneously with*

[4] (2005) 10 SCC 471

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departmental enquiry and trial of a criminal case unless the charge in the criminal trial is of grave nature involving complicated questions of fact and law. Offence generally implies infringement of public duty, as distinguished from mere private rights punishable under criminal law. When trial for criminal offence is conducted it should be in accordance with proof of the offence as per the evidence defined under the provisions of the Indian Evidence Act, 1872 (in short the 'Evidence Act'. Converse is the case of departmental enquiry. The enquiry in a departmental proceedings relates to conduct or breach of duty of the delinquent officer to punish him for his misconduct defined under the relevant statutory rules or law. That the strict standard of proof or applicability of the Evidence Act stands excluded is a settled legal position. Under these circumstances, what is required to be seen is whether the department enquiry would seriously prejudice the delinquent in his defence at the trial in a criminal case. It is always a question of fact to be considered in each case depending on its own facts and circumstances."

17. This Court is of the opinion that the present matter does not involve complicated questions of facts and law and, therefore, it is believed that both the disciplinary proceedings and criminal trial can proceed simultaneously. Additionally, in the present circumstances, it does not seem that earlier completion of disciplinary proceedings will prejudice the criminal trial against the Petitioner. In light of the aforesaid discussion and having

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regard to the present position of law, this Court is not inclined to allow the prayer of the present Petitioner.

18. Accordingly, this Writ Petition is dismissed. No order as to costs.

Sd/-Dr. S.K. Panigrahi, J.

Orissa High Court, Cuttack,
Dated the 3rd July , 2023/B. Jhankar

True Copy

AR-cum-Sr. Secretary

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